

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
May 29, 2026, 8:30 AM, Department 40**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn. Hearings will automatically be rescheduled by the clerk's office and notices will be sent to petitioners. Petitioners may be required to re-serve and / or re-publish updated or corrected notices as the circumstances of each case may require. For further information, contact the clerk's office at (916) 408-6000.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **May 29, 2026, 8:30 AM, in Department 40**, Commissioner Michael A. Jacques, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0009459 Wise, Brenda Kay - In Re Estate of

Appearance is required for order to show cause hearing as to status of administration and final distribution.

2. S-PR-0012162 In Re the Estate of Castro, Crisanto Roque IV

Petition for final distribution is recommended for approval as prayed.

3. S-PR-0012446 In Re the Estate of Foster, Michael Allen

Petition for final distribution is recommended for approval as prayed.

4. S-PR-0012481 In Re the Estate of Stefanski, Michael Anthony

Petition for final distribution

Missing notice of hearing for petition for final distribution. Missing service of notice of hearing.

Estate administration is not in a position to be closed: at least 5 creditor claims remain unresolved, having been neither approved nor rejected by personal representative. If rejected in any amount, claimant(s) will be able to bring an action against the estate.

Missing report of notice to Department of Healthcare Services and / or to California Victim Compensation board.

Ordinary fees were miscalculated: fees are to be calculated based on the appraised value of the estate augmented by any receipts or gains on sale, then reduced by any losses on sale. The calculation in the petition does not utilize the I&A values, receipts or gains on sale, etc.

Missing final account or waivers of account by each of decedent's siblings.

Missing request for ordinary attorney fees to prior counsel for personal representative. Although counsel has since substituted out, he remains entitled to statutory fees, absent a waiver or other court action reducing or eliminating attorney fees. See, e.g., Prob.C. § 12205. No waiver of fees by Smith appears to have been filed.

Missing account waivers by heirs.

Motion to substitute attorney

The motion should dropped as moot. Former counsel for administrator Robert Stevanski has substituted out of the matter.

5. S-PR-0012485 In Re the Estate of Entrekin, James Harrison

Clarification is needed as to request for reimbursement to personal representative of advances to the estate: itemized advances include multiple entries for mileage with no explanation as to miles traveled, purpose of travel, or mileage rate applied.

It is recommended the request for extraordinary attorney fees be denied. Counsel's agreement with personal representative for fees in excess of those provided by statute is void as a matter of law and cannot be the basis for any attorney fees. Prob.C. § 10813. Services relating to recovery of misappropriated property appears to include only the 2012 Hyundai, appraised at \$3,500, and miscellaneous furniture, appraised at \$500. Incurring approximately \$7,000 in extraordinary fees is not justifiable to recover only \$4,000 in value to the estate. No will was offered for probate at any time. The extraordinary fees request is not supported by any showing that conforms to the requirements of C.R.C. 7.702–7.703.

Account omits required beginning property-on-hand schedule. Final property-on-hand schedule omits the 2012 Hyundai without explanation (no disposition of the vehicle is shown in the account or report).

6. S-PR-0012548 In Re the Estate of Cronin, Steven Timothy

Missing notice of hearing for petition for final distribution. Missing service of notice of hearing.

Clarification / revision is needed: the petition alleges an I&A was filed showing assets of \$576,360. The I&A filed August 8, 2025, shows assets of \$628,141, directly contrary to the allegations of the petition. The August 8, 2025, I&A impermissibly includes personal representative appraisals of real property and vehicles. Probate referee is required to appraise all non-cash assets. I&A includes facially erroneous appraisal of decedent's checking account (it is extremely unlikely the account held exactly \$22,000.00 as of the date of death of decedent).

Missing waiver of estate account by personal representative of the estate of Patrick Cronin. Petitioners' contention that Patrick Cronin may have intended to disclaim his interest in the estate does not constitute a disclaimer. His beneficial interest vested upon decedent's death. Prob.C. § 7000. Waiver of account is required from a personal representative of his estate, or account is needed.

Petitioners' response is needed: personal representatives admit preliminary distributions of \$25,000 to each of 5 heirs. A notice petition and court order were required to authorize a preliminary distribution; no such order was granted. See, e.g., Prob.C. § 11623(a)(1). Note: no preliminary distribution was made to the estate of Patrick Cronin.

Proposed distribution (1/5 each to 5 surviving siblings) is contrary to law. Patrick Cronin's interest in the estate vest as of decedent's death and distribution to his estate or other successors is required. Prob.C. §§ 7000 & 11801 et seq. As noted above, petitioners' contention that Patrick Cronin may have intended to disclaim his interest in the estate does

not constitute a disclaimer. Petitioners' contention that Patrick's share will pass to "the remaining four (4) siblings" is irreconcilable with the allegations that decedent was survived by 6 siblings, only one of whom post-deceased.

7. S-PR-0012581 In Re the Estate of Walling, Jay Brian

Petition for final distribution

Appearance is required for hearing on petition for final distribution.

Missing notice of hearing. Missing service of notice of hearing.

Petition for final distribution is substantially overdue without justification. The estate real property sold in September 2024 and the report and account do not show any substantive administration thereafter. The first report or petition for final distribution was due July 2025. Prob.C. § 12200(a) (letters were issued July 2024). Court determination is needed as to whether personal representative and / or attorney fees should be reduced under Prob.C. § 12205.

The estate is not in a condition to be closed. Administrator acknowledges the claim of Ryan Walling remains outstanding, never having been approved or rejected. If rejected in any part, claimant will have the statutory period to bring an action against the estate. In both this petition and the companion petition, administrator proposes rejecting the claim in part. Additional calendar notes concerning the Ryan Walling creditor claim are provided with the petition for instructions, below.

Proposed administrator and attorney fees were miscalculated in two ways. First, the estate inventory and appraisal impermissibly included surviving spouse's 1/2 community interest in certain assets. Only decedent's 1/2 community interest is part of this estate and can be administered herein. The I&A failed to exclude survivor's 1/2 from the I&A valuation total, and petitioner used the inflated total for both fees calculations and for account carry values. Second, the fee base is to include additional property received, gains on sale, and receipts. See Prob.C. §§ 10800(b) & 10810(b); C.R.C. 7.705. Recalculation of personal representative and attorney fees or waiver of unclaimed fees is needed.

Notes concerning the request to surcharge Craig Walling's distributive share are provided with the petition for instructions, below.

For the benefit of counsel for administrator, it is noted that R&T § 19513, referred to in ¶ 12 of the petition, was repealed more than 12 years ago (effective January 1, 2014).

Petition for instructions re creditor claim and proposed surcharge

Appearance is required for hearing on petition for instructions re creditor claim and proposed surcharge.

Missing notice of hearing. Missing service of notice of hearing.

As a preliminary matter, it is noted that the creditor claim at issue was presented by Ryan Walling "as Trustee of the Walling Revocable Living Trust dated 6/9/93 as restated March 30, 2017." Administrator is required to address the claim as presented—by trustee—and not as though it had been presented by Ryan Walling individually. Any speculation concerning the source of funds Ryan Walling may have used to pay expenses itemized in the claim is immaterial to the claim itself. Any issues or claims that do or may exist between the said trust and Ryan Walling are outside the scope of decedent's estate administration and this petition.

It is recommended the petition for instructions be denied as unnecessary. Administrator seeks court approval of a plan to approve the subject creditor claim in part, despite arguing that the claim is wholly invalid. As noted above, the claim has not been approved or rejected and any rejection affords claimant the statutory period to bring an action against the estate. Administrator offers no legal authority establishing that a § 9611 petition for instructions may be used to determine the validity or invalidity of a creditor claim. Administrator has necessary powers to address the claim without court involvement. Prob.C. § 10552. Under these circumstances, instructions by the court appear to be unnecessary.

It is further recommended the request to surcharge Craig Walling's share with that portion of the creditor claim that the estate has volunteered to pay claimant be denied. Administrator impliedly concedes that the amounts the estate now volunteers to pay claimant did, in fact, benefit the estate, both by sparing the estate the utility, HOA, and mortgage costs which would have been claimed through escrow on sale of the property, and by removing the unauthorized occupant to free the property for sale. As claimed, the expenditures were *trust* expenses. Administrator argues at length these expenses not legally recoverable by trustee-claimant. Administrator has not shown how her plan for *voluntary* payment of trust expenditures by the estate must or should *obligate* Craig Walling to bear the entire burden of such voluntary expenditures. The cases cited by administrator do not stand for such a proposition.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

8. S-PR-0013057 In Re the Estate of Sparks, Ted Marcus

No appearance is required for hearing on status report. It is recommended a next status hearing be set June 7, 2027, 8:30 a.m., in Department 2.

9. S-PR-0013119 In Re the Leonard R Ferro Trust

Appearance is required for continued hearing on petition to remove trustee, appoint successor, compel trustee account, and to surcharge trustee.

Current status is needed.

10. S-PR-0013432 In Re the Suzanne Stoddard Rev Liv Trust

Petition to determine trust property (J Deol)

Appearance is required for continued hearing on petition to determine trust property.

Amended petition to determine trust property (H Deol)

Appearance is required for hearing on amended petition to determine trust property.

Missing notice of hearing. Missing service of notice of hearing. Use of summons is insufficient. Prob.C. §§ 851 & 1211. Filing and service of mandatory form DE-115 is needed.

Demurrer to amended petition to determine trust property (H Deol)

Appearance is required for hearing on amended petition to determine trust property and for other relief (H Deol).

11. S-PR-0013567 In Re the Estate of Laub, Michael Alexander

Petition for final distribution is recommended for approval when prayed.

12. S-PR-0013696 In Re the Mary Evelyn Carson Rev Trust

Appearance is required for continued hearing on petition for instructions and other relief.

13. S-PR-0013766 In Re the Matter of Nishikida, Michiko

Petition for attorney fees is recommended for approval as prayed.

14. S-PR-0013781 In Re the Estate of Brar, Premjeet

Petition to administer estate (B Sohi)

In light of the reported death of petitioner, it is recommend the pending petition to administer estate (B Sohi) be dropped from calendar.

Petition to administer estate (J Brar)

Missing proof of publication of notice of hearing.

Missing required allegations at ¶ 5a(3)–(4) (RDP) and (7)–(8) (issue of predeceased child(ren)).

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until the Duties form is filed. C.R.C. 7.150.

15. S-PR-0013782 In Re the Estate of Sohi, Puneet

In light of the reported death of petitioner, it is recommended the pending petition to administer estate (B Sohi) be dropped from calendar.

16. S-PR-0013961 In Re the Hammack Liv. Trust

Appearance is required for continued hearing on petition to determine trust property.

It is again recommend the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. The writing relied on by petitioner does not describe the subject property. Nor is the subject property described elsewhere in the trust or in either trust restatement. The fundamental facts of *Heggstad* were the identifying description of the property in the trust documents ("All the trust property was identified in a document titled schedule A;" although "misabeled," there was "no dispute as to the nature of the decedent's interest in this [described] property") and the declaration that "the property described in schedule A" was transferred to Mr. Heggstad as trustee." *Heggstad*, supra, at 946–947. It was that "written declaration of trust" that was upheld by the court. Id. at 950.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90. *Kucker* concerned only transfer of personal property to a trust, not transfer of real property to a trust. *Id.* at 92 & 95. *Kucker's* discussion of the effect of general assignment as to real property is merely dicta.

Nor is relief available under *Ukkestad*, *supra*. *Ukkestad* concerned real property owned by settlor at the time the funding writing was executed, as petitioner concedes: the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property. It does not hold that later-acquired real property can be automatically funded to a trust where settlors have taken title contrary to the trust. Petitioner's supplemental argument notes that there no holding prohibiting successful use of an after-acquired-property writing. This is unsurprising, as the case did not involve any such question, but it also provides no basis to extend *Ukkestad's* holding far beyond the facts of the case.

Petitioner cites three additional cases, *Bumb v. Bennett* (1958) 51 Cal.2d 294, 302; *Brusseau v. Hill* (1927) 201 Cal. 255; and *Pettigrew v. Dobbelaar* (1883) 63 Cal. 396.

Bumb concerned the validity of an assignment of real property by a partnership against a claim to the same property by a levying creditor. It has no apparent application to this proceeding and petitioner offers no explanation for why it was cited.

Brusseau v. Hill concerned an inter vivos transfer of property *contemporaneously owned and possessed* by grantor at the time he gave grantee a writing purporting to make a gift of the property, together with keys and immediate possession.

Pettigrew's holdings are also limited to contemporaneously owned property. The case concerned two deeds. The first described real properties by map number and lot numbers; the second, as "all lands and real estate belonging to the [grantee]." As to the second deed, the California Supreme Court tersely held: "If the lands in controversy *belong to* [grantor] they passed by the deed" *Pettigrew*, *supra*, at 397 (emphasis in original).

Relief also cannot be granted on the basis of the pourover will. Petitioner initially argued the court should grant relief to allow petitioner to avoid "unnecessarily expensive, time-consuming, . . . waste[ful]" probate which would involve "considerable and disproportionate time and expense" (Petition, ¶ 10); petitioner has now clarified that she "does not rely on the pourover will" for this petition (Supplement, II.d).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

17. S-PR-0013969 In Re the Michael and Eva Gress Rev. Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

18. S-PR-0013997 In Re the Ludlow Fam Liv Trust

Petition to determine trust property is recommended for approval as prayed.

19. S-PR-0013998 In Re the Ludlow Fam Liv Trust

This petition appears to be a duplicate filing of the petition filed as S-PR-0013997, above. This matter should be dropped from calendar.

20. S-PR-0014000 In Re the Avila Rev Liv Trust

Petition to instruct trustee re distribution of the trust estate is recommended for approval as prayed.

21. S-PR-0014003 In Re the Estate of Garcia, Javier Francisco

Missing typewritten transcription of holographic instrument attached to petition. Prob.C. § 8002(b)(1).

Missing relationship(s) of persons listed in ¶ 8 to decedent.

22. S-PR-0014004 In Re the Timothy and Carolyn Riolo Fam Liv Trust

Appearance is required for hearing on petition to compel trustee account, remove trustee, and for instructions.

Additional calendar notes, including information concerning a continuance or relocation of the hearing, may be posted in light of petitioner's non-stipulation to commissioner previously filed.